LVNV FUNDING, LLC v LINTHICUM

25CF15506

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is an action by LVNV Funding LLC, as successor in interest to Citibank, NA ("Plaintiff") against Kay M. Linthicum ("Defendant") for the collection of a credit card debt in the sum of $ $22,579.20.

In her Answer, Defendant raised affirmative defenses to Complaint including that she had been caring for an ill husband who passed away, and that she is on extremely limited income.

Now before the Court is Plaintiff's motion for judgment on the pleadings.

I. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northop Grumman Corp*. (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id*.) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc.§ 438(d).)

If the motion is granted in favor of the plaintiff, "it shall be based on the grounds that the complaint states facts sufficient to constitute a cause of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc. §438(c)(3)(a).)

II. Legal Analysis

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.) "Where contract language is clear and explicit and does not lead to absurd results, we ascertain intent from the written terms and go no further." (*Shaw v. Regents of Univ. of Cal*., (1997) 58 Cal. App 4th 44, 53.)

Plaintiff is a debt buyer that is regularly engaged in the business of purchasing charged-off consumer debt for collection purposes, as defined in California Civil Code section 1788.50, subdivision (a)(1). (Complaint ¶ 5.) Defendant and Citibank entered into a contract for a consumer credit card. (*Id.* ¶ 6.) Plaintiff purchased the debt from

Citibank on March 23, 2024. (*Id.* ¶ 7.) Pursuant to the contract between Defendant and Citibank, Plaintiff provided credit and Defendant used that credit to make consumer purchases. (Complaint ¶ 13.) Defendant stopped making payments towards the balance on the subject account her last payment was on June 9, 2023. (*Id*. ¶14.) Defendant has an unpaid balance on her account of $22,579.20 (*Id.* ¶15.)

In her Answer, Defendant did not deny the allegations against her with regards to the breach of contract and credit card debt.

Plaintiff has therefore carried its burden of demonstrating evidence supporting all the elements of its claim for breach of contract and that there are no affirmative defenses available. Defendant has failed to oppose the motion and makes no argument on her own behalf.

III. Conclusion

Plaintiff’s motion for judgment on the pleadings is **GRANTED**.

The clerk shall provide notice of this ruling to the parties forthwith. The Court intends to sign the submitted Order and Judgment.

<u>10:00 a.m. Calendar</u>

MATTER OF THE LORA J. OSTROM TRUST

25PR8868

TRUSTEE OSTROM-RAINEY'S MOTION FOR ATTORNEY'S FEES AGAINST WENDY PEEPLES

This probate matter brought by the Wendy Peeples aka Wendy J. Ostrom ("Petitioner") involves a Petition for Instructions for Trustee Distribution and For Accounting and Compelling the Redress of Breach of Trust against the Successor Trustee Dawn J. Ostrom ("Objector.")

Now before the Court is a motion for attorney's fees in the amount of $4,850.76 brought by Objector.

I. Relevant Background

The petition that initiated this action was filed on March 17, 2025. On June 6, 2025, the Court held the hearing on the petition. Objector was present but her counsel was not. During the hearing, the Court noted that Ostrom did not know where her attorney was and further that her counsel, Ms. Shafer, had a history of missed appearances. The Court further noted that Ms. Shafer had failed to file any written objection. Thereafter, the Court entered an Order granting the petition, removing Objector from her fiduciary duties, and charging costs and fees to Objector.

On August 29, 2025, the Court denied Objector's motion for relief from default and motion for a new trial. Objector then filed a notice of appeal on September 10, 2025.

On September 12, 2025, Petitioner filed an ex parte application under Probate Code section 1310(b). Petitioner's application stated that she sought only narrow directions "to prevent injury or loss to the estate." The application explained that only approximately $30,000 in liquid trust funds remain, that those funds were the only ready source for taxes, preservation expenses, record gathering, and the accounting the Court had already ordered, and that there was a substantial risk the funds would be consumed during the appeal absent protective relief.